

Barahmand Decl. ISO Motion, ¶ 4, Exh. C; Barahmand Decl. ISO Reply, ¶ 2, Exh. A.) Even if there was unreasonable delay, “it is an abuse of discretion to deny leave to amend where the opposing party was not misled or prejudiced by the amendment.” (*Kittredge Sports Co. v. Superior Court* (1989) 213 Cal.App.3d 1045, 1048.)

As to Defendants’ claim of prejudice, the Court notes that despite Defendants stating in the statement of facts that Plaintiff has already alleged a PAGA claim in the first amended complaint, the arguments in the Opposition regarding prejudice do not appear to acknowledge this. (Opposition, pp. 1, 7-9.) The Court finds that one additional cause of action relating to a non-compete agreement is not such a large endeavor so as to deny Defendants an opportunity to adequately prepare a defense, especially in light of there being no trial date set in this matter.

“[D]iscretion should be exercised liberally in favor of amendments, for judicial policy favors resolution of all disputed matters in the same lawsuit.” (*Kittredge Sports Co. v. Sup. Ct.* (1989) 213 Cal. App. 3d 1045, 1047.) “The trial court has discretion to permit or deny the amendment of the complaint, but instances justifying the court’s denial of leave to amend are rare.” (*Armenta ex rel. City of Burbank v. Mueller Co.* (2006) 142 Cal.App.4th 636, 642.) The Court finds that this is not one of those rare instances where denial of leave to amend is justified.

Regarding Plaintiff’s request for sanctions, the Court denies this request as the *Ellis v. Roshei Corp.* (1983) 143 Cal.App.3d 642, cited by Plaintiff, is distinguishable from the instant matter before the Court. In *Ellis*, the sanctioned party wanted certain information to be included in the complaint, and the other side offered to include that information if the sanctioned party would stipulate to the filing of an amended complaint. The sanctioned party refused to so stipulate and filed a demurrer. Here, Defendants requested the factual basis for the new cause of action when considering to stipulate and it appears that Plaintiff did not provide that basis until they filed the Reply and Declaration in Support of the Reply. Further, this is not an instance of a party asking for something, being offered it, and then rejecting the offer and filing a motion for what was offered, as was the case in *Ellis*.

Ruling

Plaintiff’s motion for leave to amend is GRANTED, but the request for sanctions is DENIED. The Court orders Plaintiff to file their proposed second amended complaint, properly captioned, within 10 calendar days of notice of entry of this order. Defendants’ response thereto shall be filed per code.

11. 9:00 AM CASE NUMBER: C25-02371
CASE NAME: BETTY KARRIS VS. JILL CHERNE
***HEARING ON MOTION IN RE: QUASH SUBPOENAS**
FILED BY: KARRIS, BETTY JEAN
TENTATIVE RULING:

Plaintiff Betty Karris brings this Motion to Quash subpoenas by Harry Karris, who was initially appointed by the Court to be Plaintiff Betty Karris’s Guardian Ad Litem, although Defendant Jill Cherne has sought to set aside that appointment. The subpoenas are seeking information relating to Plaintiff’s financial information (through banks) and attorney-client information (through attorneys and law firms). The Court previously indicated that Harry Karris should step down and be replaced by

a neutral guardian ad litem. His authority “continue[d] only to carry out the acts necessary to comply with this order.” He was invited to move to intervene.

Since that December 11, 2025 order, the parties have put before the Court ongoing disputes, but have not managed to comply with the Court’s order to select another Guardian Ad Litem. Instead, they have dug their heels in, with one side suggesting some GALs, the other side opposing, and neither side wavering to find alternatives. At this time, as the Court previously indicated, it is not certain that Betty Karris requires a GAL.

The subpoenas at issue were served in Plaintiff Betty Karris’s name, by a GAL who should no longer be the GAL except to effectuate the prior order. They are therefore of tenuous validity. Given the nature of the subpoenas and the procedural posture of this case, the Motion to Quash as to the attorney subpoenas is **granted**. This is not a ruling on the merits of the subpoenas, but given the sensitive nature of the information they seek and that Harry Karris has been informed by the Court that he has no ongoing authority as GAL except in a limited capacity not applicable here, they cannot stand. Although the medical records are similarly situated, when they issued, Harry Karris *was* the GAL and they relate to information necessary to move this case forward; namely Dr. Nancy Hoffman requires them to proceed with her evaluation. The Motion to Quash medical records is therefore **denied** with the following caveat: The medical records shall left sealed until they are in the hands of Dr. Nancy Hoffman. Only she (and any necessary assistants) may review them. She may make copies for her own use, subject to destruction of those copies after her work on this matter is concluded. The originals will be resealed and shall remain sealed until the Court rules on the issues relating to the need for a GAL and a new GAL is appointed. The Court truly hopes the parties can agree on who is trustworthy enough to maintain sealed files in their office, but if the parties cannot agree, they can be housed with the Court.

12. 9:00 AM CASE NUMBER: C25-02680
CASE NAME: NATHAN STEINLE VS. PREMDIP DHOOT
***HEARING ON MOTION IN RE: RELATE/COORDINATE CASES**
FILED BY: STEINLE, NATHAN
TENTATIVE RULING:

Plaintiff Nathan Steinle seeks to coordinate three cases, all arising out of the same series of events, all involve the same defendants (with one minor exception), and all address similar questions of law. The Court received no timely opposition.

The instant case is C25-02680, Nathan Steinle v. Premdip Dhoot. It is the earliest-filed case. The Court will therefore coordinate with this case the two related cases: 98 Colima, LLC v. HD 2670 Walnut Blvd Member, LLC, et al., C25-02681 and Ascent Investments Company, LLC v. HD 2670 Walnut Blvd Member, LLC, et al., C25-02683. All future hearings in these two matters are vacated and reset to align with hearings in C25-02680.

13. 9:00 AM CASE NUMBER: C25-02730